

25TRCV00289 25TRCV00289

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Case Number: 25TRCV00289 Hearing Date: September 9, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – September 9, 2026

Calendar No.

PROCEEDINGS

Stefany

Cruz v. Jaguar Land Rover North America, LLC, et al.

25TRCV00289

1.

Stefany Cruz's Motion

to Compel Compliance with the Court's Order; for Terminating Sanctions; or, in the Alternative, for Further Sanctions

TENTATIVE RULING

Stefany Cruz's Motion to Compel Compliance with the Court's Order; for Terminating Sanctions; or, in the Alternative, for Further Sanctions is denied.

Background

Plaintiff filed the Complaint on January 29, 2025. This is a “Lemon Law” case brought by Plaintiff concerning a 2023 Land Rover Range Rover Evoque. Plaintiff alleges that the vehicle suffers from widespread defects including suspension, electrical, engine, and structural system defects. Defendant was unable to repair their vehicle within a reasonable number of attempts. Plaintiff further alleges that Defendant knew that the vehicle suffered from the prevalent defects but nevertheless refused to repurchase the vehicle—a willful violation of the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”).

Motion to Compel Further Responses to Requests for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Motion to Compel Compliance to Responses to Requests for Production of Documents

Code Civ. Proc., § 2031.320 states,
in relevant part:

“(a) If a party filing a response to
a demand for inspection, copying, testing, or sampling under Sections 2031.210,
2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the
inspection, copying, testing, or sampling in accordance with that party's
statement of compliance, the demanding party may move for an order compelling
compliance.

(b) Except as provided in
subdivision (d), the court shall impose a monetary sanction under Chapter 7
(commencing with Section 2023.010) against any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel compliance with a demand,
unless it finds that the one subject to the sanction acted with substantial
justification or that other circumstances make the imposition of the sanction
unjust.

(c) Except as provided in
subdivision (d), if a party then fails to obey an order compelling inspection,
copying, testing, or sampling, the court may make those orders that are just,
including the imposition of an issue sanction, an evidence sanction, or a
terminating sanction under Chapter 7 (commencing with Section 2023.010). In
lieu of or in addition to that sanction, the court may impose a monetary
sanction under Chapter 7 (commencing with Section 2023.010).

(d)(1) Notwithstanding subdivisions
(b) and (c), absent exceptional circumstances, the court shall not impose
sanctions on a party or any attorney of a party for failure to provide
electronically stored information that has been lost, damaged, altered, or
overwritten as the result of the routine, good faith operation of an electronic
information system.”

Motion for Terminating Sanctions

If a party fails to comply
with a court order compelling discovery responses or attendance at a
deposition, the court may impose monetary, issue, evidence, or terminating
sanctions. CCP § 2025.450(h)
(depositions); § 2030.290(c) (interrogatories); § 2031.300(c) (demands for

production of documents). CCP § 2023.030

provides that, “[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . .

. [monetary, issue, evidence, or

terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process” Code of

Civil Procedure § 2023.010 provides that “[m]isuses of the discovery process include, but are not limited to, the following:

. . . (d) Failing to respond or

to submit to an authorized method of discovery. . . . (g) Disobeying a court order to provide discovery. . . .”

“The trial court may order a

terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the

party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” *Los Defensores, Inc. v. Gomez* (2014) 223 Cal. App. 4th

377, 390 (quoting *Lang v. Hochman* (2000) 77 Cal. App. 4th 1225, 1246).

“Generally, ‘[a] decision to order terminating sanctions should not be made lightly. But where a violation is

willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” *Los Defensores*, 223 Cal. App. 4th at 390 (citation omitted).

“Under this standard, trial

courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders.”

Los Defensores, 223 Cal. App.

4th at 390 (citing *Lang*,

77 Cal. App. 4th at 1244-1246 (discussing cases)); see, e.g., *Collisson & Kaplan v. Hartunian* (1994) 21 Cal. App. 4th 1611, 1617-1622 (terminating sanctions imposed after defendants failed to comply with one court order to produce discovery); *Laguna Auto Body v.*

Farmers Ins. Exchange (1991) 231 Cal. App. 3d 481, 491, disapproved on other grounds in *Garcia v. McCutchen*

(1997) 16 Cal. 4th 469, 478, n. 4 (terminating sanctions imposed against

plaintiff for failing to comply with a discovery order and for violating various discovery statutes).

The type of severe sanctions sought by Defendant such as issue, evidentiary, and terminating sanctions for failure to comply with a court order are allowed only where the failure was willful. See *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495; See also *Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545; See also *Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327.

“Doomsday” sanctions are reserved for parties who commit willful, repeated, violations of court orders. *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390. “Generally, [a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” *Id.*

Plaintiff moves “for an order: (1) compelling Defendant JAGUAR LAND ROVER NORTH AMERICA, LLC’s (“Defendant”) compliance with this Court’s May 6, 2026, Order (the “Court’s Order”) within five (5) calendar days; and (2) imposing terminating sanctions against Defendant for its continued, willful violation of the Court’s Order, or, in the alternative, monetary and/or issue sanctions.” (Notice of Motion, p. 2, lines 4-8).

As to the motion to compel “compliance,” the motion is denied. Upon review of the last further responses that were served by Defendant, the only response in which a statement of compliance was made was as to Request 2. However, Plaintiff has presented no arguments indicating that Defendant failed to produce documents in conformity with the statement of compliance. In fact, the arguments made by Plaintiff specifically address the perceived deficiencies with the responses to Requests 1 and 3.

As to the motion to compel “compliance,” with respect to Requests 1 and 3, again, this is not a motion to compliance, at all, but a motion to compel further responses to Requests 1 and 3.

To the extent that the motion is seeking compliance with the Court order itself, Defendant did serve a further response in

compliance with the order. If the further response is deficient, Plaintiff's recourse would be to file a motion to compel further responses to request for production of documents. Thus, the Court will also analyze the motion as if it might have been intended to be a motion to compel further responses to request for production of documents.

The motion to compel further responses is denied because Plaintiff failed to set forth a meet and confer declaration in sufficient compliance with CCP §§ 2031.310 and 2016.040. As noted by both parties, Defendant served a further response on August 12, 2026. However, there is no indication that Plaintiff met and conferred with Defendant regarding the further response that was served on that date. Instead, Plaintiff's counsel simply states the following:

"Consistent with the parties' August 3, 2026 agreement, Defendant served its Second Supplemental Responses to RFP Nos. 1 and 3 on August 12, 2026. As to RFP No. 1, Defendant's Second Supplemental Response reasserts, verbatim, the same "never existed or have never been in possession, custody, or control of JLRNA" position set forth in its June 16, 2026 Supplemental Response. As to RFP No. 3, Defendant abandoned its own June 16, 2026 representation that it "will comply in whole and produce nonprivileged responsive documents pursuant to a protective order," and instead asserted, for the first time, that the requested documents "never existed." Attached hereto as Exhibit 8 is a true and correct copy of Defendant's Second Supplemental Responses to Plaintiff's Requests for Production of Documents, Set One, served August 12, 2026. 20. To date, notwithstanding two supplemental responses, more than three months since the Court's Order issued, and Plaintiff's extensive, good-faith meet-and-confer efforts, Defendant has produced no documents responsive to RFP No. 1 and has expressly retreated from producing anything further responsive to RFP No. 3." (Declaration, Camilo Fernandez, ¶¶ 19-20).

Plaintiff's meet and confer declaration must show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference" to resolve the issues informally with opposing counsel, including whether the parties conferred on the retention of a court reporter for the hearing. CCP §§ 2016.040(a)(b). There is no indication that any meet and confer process was initiated after the most recent further response that was served on August 12, 2026. Perhaps Plaintiff's counsel believed that it would be futile to meet and confer. However, this does not excuse the meet and confer requirement which is mandated by statute.

As to the request for terminating sanctions, the motion is denied. "In the context of sanctions against a party for willful refusal to furnish discovery, it has been held that the responding party has the burden of proving the lack of willfulness of his failure to perform." *Corns v. Miller* (1986) 181 Cal.App.3d 195, 201. Defendant's opposition shows that there has not been a willful refusal to furnish discovery. Instead, the motion and opposition simply indicate a dispute with respect to whether Defendant's discovery responses are complete and sufficient.

Finally, for the foregoing reasons, Plaintiff's request for monetary sanctions is also denied.

Defendant is ordered to give notice of this ruling.